

hour is reasonable). The total reasonable fee and cost award is \$1,560.00.

Defendant's Motion to Deem Request for Admission, Set One Admitted by Plaintiff is **GRANTED**. Sanctions of \$1,560.00 are imposed against Plaintiff and are payable within 30 days of notice of entry of order. A proposed order has been lodged and will be modified.

JOHANSON VS. NORTH STATE GROCERY, INC

CASE NUMBER: 24CV-0206490

Tentative Ruling on Early Evaluation Conference: On August 25, 2025, Defendant North State Grocery, Inc. filed a "Request for Early Evaluation Conference." On February 9, 2026, the Court granted Defendant's request and issued a detailed tentative ruling outlining the requirements of the Early Evaluation Conference as provided in Labor Code section 2699.3(f). Defendant was instructed to submit a proposed order. On March 30, 2026, the Court issued the proposed order submitted by Defendant. The order did not contain the deadlines required by Labor Code section 2699.3. Regardless of whether the deadlines were included in the order, Defendant was aware of the deadlines based on the Court's prior ruling for the February 9, 2026 hearing. An issue has now arisen about Defendant's compliance with the requirements of section 2699.3(f) and whether this Court can issue a further Early Evaluation Conference or extend the statutory timeframes found in section 2699.3(f). The Court invited briefing on the matter. Plaintiff's briefing opposes a further Early Evaluation Conference, while Defendant's briefing argues for the process to proceed. The Court has reviewed section 2699.3 and finds that the statutory deadlines cannot be satisfied based on the conduct of the Defendant. The Court intends on lifting the stay and allowing the litigation to proceed but will hear from the parties at the time of the hearing. **An appearance is necessary on today's calendar to provide argument related to a further Early Evaluation Conference.**

LOZANO VS. COUNTY OF SHASTA

CASE NUMBER: 26CV-0210630

Tentative Ruling on Demurrer: Defendant, County of Shasta, demurs to the Complaint filed on May 11, 2026, by Plaintiff Ryan Lozano. Plaintiff has not opposed the demurrer.

As a preliminary matter, Plaintiff filed a First Amended Complaint on July 1, 2026. Generally, this would cause the demurrer to be moot; however, the First Amended Complaint was not signed by Plaintiff. Due to Plaintiff's failure to sign the amended complaint, the Court orders the First Amended Complaint filed on July 1, 2026, **STRICKEN**.

Meet and Confer. CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Renee Belcastro indicates that Defendant attempted to call Plaintiff to meet and confer but was unsuccessful. Defendant subsequently emailed with Plaintiff, and Plaintiff provided a new phone number where he could be reached. There is no indication that Defendant attempted to call Plaintiff at his new number to meet and confer on the demurrer. This is insufficient. The parties are reminded of their obligation to meet and confer in compliance with CCP § 430.41.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid

cause of action” or if the complaint is uncertain. CCP § 430.10(e)-(f). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Defendant demurs to the Complaint on the grounds that Plaintiff failed to state facts to constitute a cause of action and failed to plead essential elements necessary to establish liability. The Complaint ultimately alleges that Plaintiff was wrongfully removed from the subject premises. Defendant contends that Plaintiff failed to establish that a tenancy existed. The Complaint fails to plead the necessary elements of a tenancy thus giving Plaintiff the right to occupy the premises. The First Amended Complaint that Plaintiff attempted to file shows that these issues may be sufficiently addressed by the filing of an amended complaint.

The Demurrer is **SUSTAINED** with leave to amend. Defendant has provided a proposed order which will be modified to reflect the Court’s ruling. Plaintiff shall file an Amended Complaint within 15 days of service of notice of entry of order.

MANION VS. HAT CREEK CONSTRUCTION & MATERIALS, INC.

CASE NUMBER: 24CV-0205505

Tentative Ruling on Motion for Final Approval of Class Action Settlement: Plaintiff Donald Manion brought this wage and hour class action and Private Attorneys General Act (“PAGA”) matter against Defendant Hat Creek Construction & Materials, Inc. The parties have settled the matter for a total of \$480,000. On February 4, 2026, the Court issued an order granting preliminary approval of the settlement and which certified the class.

Final Approval of the Settlement. The proposed final breakdown for the settlement is as follows:

Total Settlement Amount	\$480,000
Proposed Attorneys’ Fees (33 1/3%)	-\$160,000
Litigation Costs and Expenses	-\$15,185.30
Settlement Administration Costs	-\$6,500
Proposed Class Representative Service Payment	-\$10,000.00
PAGA Claim Settlement Allocation	\$20,000
Payment to Labor and Workforce Development Agency (LWDA) (75%)	(-\$15,000)
Payment to Class Members (25%)	(\$5,000)
Net Settlement Amount	\$268,314.70

The settlement class is comprised of 342 individuals. Individual payments are based on a pro rata amount of pay periods worked during the class period. No claim form was necessary to participate in the settlement. Unless a class member opted out, they will receive a payment based on the time worked as calculated by the settlement administrator.

In deciding whether a class settlement is sufficiently fair, adequate and reasonable to warrant granting final approval, the Court considers several factors, including: 1) the amount offered in